

24STCV05027 24STCV05027

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-07-07

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Case Number: 24STCV05027 Hearing Date: July 7, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV05027

ASHLEY

HERSHEY vs LABORATORY CORPORATION OF AMERICA HOLDINGS, et al.

July

7, 2026

8:30

AM

NATURE OF PROCEEDINGS AND

RULINGS:

1.

DEFENDANT LABORATORY CORPORATION OF

AMERICA HOLDINGS AND ESOTERIX, INC.'S MOTION TO COMPEL PLAINTIFF'S COMPLIANCE
WITH REQUEST FOR PRODUCTION OF DOCUMENTS AND REQUEST FOR SANCTIONS.

The Court grants the
Motion.

2.

DEFENDANTS LABORATORY CORPORATION OF
AMERICA HOLDINGS AND ESOTERIX, INC.'S MOTION FOR FORENSIC INSPECTION AND
SANCTIONS.

The Motion is denied.

3.

PLAINTIFF ASHLEY HERSHEY'S MOTION TO
COMPEL FURTHER DISCOVERY RESPONSES ON PLAINTIFF'S REQUEST FOR PRODUCTION OF
DOCUMENTS (SET TWO) TO DEFENDANT ESOTERIX, INC.; REQUEST FOR MONETARY SANCTIONS
AGAINST ESOTERIX, INC. AND ITS COUNSEL IN THE AMOUNT OF \$4,200.00.

The Court takes this
Motion off calendar, without prejudice, in light of the parties' agreement.

I.

BACKGROUND

The Court incorporates by
reference the Background section of the Minute Order entered on September 18,
2025.

First, on June 4, 2026, Defendants
LABORATORY CORPORATION OF AMERICA HOLDINGS and ESOTERIX, INC. (Defendants) filed
the Motion to Compel Plaintiff's Compliance with Request for Production of
Documents and Request for Sanctions. Defendants also request monetary sanctions
against Plaintiff and Shegerian Conniff LLP, jointly and severally, in the sum
of \$9,075.00. On June 24, 2026, Defendant filed a notice that the
above-referenced Motion remains unopposed; however, an Opposition was filed
that same date, as to which the Reply objects based upon untimeliness.

Second, on June 4, 2026,
Defendants filed the Motion for Forensic Inspection of Plaintiff's various

computer devices, and for sanctions in an amount to be determined. Plaintiff reports technological difficulties, code-compliant searches and inquiries, and objects to overbreadth involved.

Third, on June 15, 2026, ASHLEY

HERSHEY (Plaintiff) filed the Motion to Compel Further Document Responses and Production, from ESOTERIX, INC. (Defendant). Also, Plaintiff requests sanctions against Defendant and its counsel in the sum of \$4,200.00. Defendants oppose, essentially based on arguing that the Motion is moot, after verified, supplemental responses. Alternatively, Defendants request an Order requiring further meeting and conferring.

II.

LEGAL STANDARD

A propounding party's remedy when it deems objections in discovery responses to be without merit is to move for an order compelling further responses. (*Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1127.)

A document response must consist of: 1) An agreement to comply, stating whether the productions or inspection will be allowed "in whole or in part," and that all documents or things in the possession, custody or control of the respondent, as to which no objection is made, will be included, by the date set for inspection (unless informally extended in writing, or the designated timing is subject to objection); 2) a representation of inability to comply, with a specification of any person believed or known to have possession of documents; or, 3) objections and specification of withheld documents. (Code Civ. Proc., §§ 2031.210, subd. (a), 2031.220, 2031.270, 2031.280.) Compliance includes all documents or things in the demanded category that are in the "possession, custody, or control" of the responding party, such as from other corporations. (*Roche v. Hyde* (2020) 51 Cal.App.5th 757, 813 [quoting Code Civ. Proc., § 2031.220].) With regard to document requests, a response expressing an inability to comply shall state that a diligent search and reasonable inquiry was made to locate the items, and the reason for an inability to comply, including that the item never existed, was lost or stolen, was destroyed, or is not in respondent's possession, along with the identity and address of anyone believed to have the document. (Code Civ. Proc., § 2031.230.) "Even where a party deems a demand to be objectionable, he [she, or it] still must identify those items which fall into the category of item in the demand to which an

objection is being made.” (Standon Co. v. Superior Court (1990) 225 Cal.App.3d 898, 901, fn.3.)

Courts have discretion to prohibit discovery if it is unreasonably duplicative or unduly burdensome. (E.g., Code Civ. Proc., § 2019.030, subd. (a); City of King City v. Community Bank of Central California (2005) 131 Cal.App.4th 913, 933; Emerson Elec. Co. v. Superior Court (1997) 16 Cal.4th 1101, 1110.)

A privacy objection is not ripe for adjudication before a court if there is no factual basis for ruling, such as respondents’ identifying the documents withheld in a privilege log or elsewhere. (Connecticut Indem. Co. v. Superior Court (2000) 23 Cal.4th 807, 818.)

“[I]f documents responsive to a document request are withheld on privilege grounds, a privilege log or some equivalent specification of any asserted privilege objection ‘shall’ be supplied.” (Roche v. Hyde (2020) 51 Cal.App.5th 757, 813.) “[L]egislation amended subdivision (c)(1) of Code of Civil Procedure section 2031.240 to require the preparation of a privilege log ‘if necessary’ to ‘provide sufficient factual information for other parties to evaluate the merits’ of a claim of privilege or protected work product.” (Bank of Amer., N.A. v. Superior Court (2013) 212 Cal.App.4th 1076, 1098.) Courts may require a specific privilege log as to documents withheld. (Best Prods., Inc. v. Superior Court (2004) 119 Cal.App.4th 1181, 1188-1189.)

But if a party objects to discovery requests, and also provides complete responses to the requests, then nothing is left to address in a motion to compel. (American Federation of State, County & Municipal Employees v. Metropolitan Water Dist. (2005) 126 Cal.App.4th 247, 269.)

And a discovery motion should not be denied automatically based upon the reason that the moving parties failed to meet and confer in good faith. (Obregon v. Superior Court (1998) 67 Cal.App.4th 424, 434. But see Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1439 [motion must be denied where lack of meet and confer].) A failure to meet and confer in good faith, “may jeopardize the movant’s ability to obtain relief for

the other side's alleged misuse of the discovery process.” (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1298–1299.) “A determination of whether an attempt at informal resolution is adequate . . . involves the exercise of discretion.” (Stewart v. Colonial W. Agency (2001) 87 Cal.App.4th 1006, 1016. Accord, Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1293-1294.)

“If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.) Courts may determine substantial justification based on the “whole picture” of the discovery dispute, including where parties partially prevailed as to some discovery items in dispute, or where discovery concessions occurred only after improperly asserted objections. (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1297.) Where satisfactory responses have been served after the filing of motions to compel, courts nonetheless may award sanctions. (County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 256.)

III.

ANALYSIS

A.

Defendants’ Motion to Compel Plaintiff’s Compliance.

Defendants seek verified document responses that are fully code compliant and they specify that: “Plaintiff still has not produced the communications Ms. Davis described or served verified amended responses explaining whether those communications never existed, were deleted, were lost, are inaccessible, or otherwise cannot be produced.” (Reply, 8:8-10.) Defendants further state that belated production reveals that Plaintiff’s prior production was incomplete.

Plaintiff responds that

Defendants only speculate documents were withheld, Plaintiff served code-compliant responses after reasonable and diligent searching, and produced responsive documents within her possession, custody, and control. Plaintiff adds that supplemental responses were proper after continued searches hindered

by technological limitations.

Defendants report that

Plaintiff did not address Labcorp Requests for Production Nos. 21, 27, 29, and 32, and Esoterix Request for Production No. 3. (Reply, 3:17-18.)

Complete silence in an

opposition to a motion, as to an issue, results in a waiver of the right to argue the matter in trial court and on appeal. (Assad v. Southern Pacific

Transportation Co. (1996) 42 Cal.App.4th 1609, 1615.) Ordinarily, appellate

courts will not consider arguments, authority, and facts that were not

presented in the trial court, and those are deemed to be waived. (E.g., Bank of America, N.A. v. Roberts (2013) 217 Cal.App.4th 1386, 1398-1399; In re

Marriage of Falcone and Fyke (2008) 164 Cal.App.4th 814, 826.)

The Court has searched through

the Opposition and the Plaintiff's and attorney's accompanying Declarations, filed on June 24, 2026, and has been unable to find any content specifically addressing items 27, 29, and 32 at issue.

As to 21 and 3, it appears that Plaintiff has addressed those concerns

and allege that Plaintiff "has conducted a reasonable and diligent search and produces all responsive documents in her possession, custody, and control.

Discovery is still ongoing and responding party reserves the right to, without

any obligation, supplement responding party's responses." (Opp. 5: 22-25.) This is a permissible and sufficient response.

Therefore, the Court

grants the Motion, as to numbers 27, 29, and 32, as prayed.

B.

Defendants' Motion for Forensic Inspection and Sanctions.

Defendants advocate an

order requiring Plaintiff to submit devices including desktop and laptop

computers, tablets, and Plaintiff's cell phone(s) to a forensic examination at

Plaintiff's expense by a forensic examiner. They also seek a jury instruction

about evidence concealment or destruction (modified CACI No. 2024). And they

request monetary sanctions jointly and severally against Plaintiff and

Shegerian and Conniff LLP, in an amount still to be determined at the hearing.

Plaintiff responds by asserting the discovery cutoff, an agreement to limited production not including overbreadth, and a reasonable search and diligent inquiry. Plaintiff adds that her deposition testimony well evidences an inability to produce certain text messages, given the technical limitations.

Defendants reply that Plaintiff neglected to address Plaintiff's violation of this Court's October 15, 2025 order compelling production of the sought materials, and that a forensic examination would allow discovery into the purported technical limitations.

A motion to compel compliance as agreed with a request for production of documents is based upon a showing that the respondents failed "to permit an inspection 'in accordance with that party's statement of compliance.'" (Standon Co. v. Superior Court (1990) 225 Cal.App.3d 898, 903. See also Code Civ. Proc., § 2031.320, subd. (a).)

"There is little California case law regarding discovery of electronically stored information under section 1985.8. We look, therefore, to federal case law on the discovery of electronically stored information under the Federal Rules of Civil Procedure for guidance on the subject." (Vasquez v. Cal. School of Culinary Arts, Inc. (2014) 230 Cal.App.4th 35, 42.) Metadata is hidden information, electronically stored, and may include information about the computer file author, and times of creating and modifying the file, and can be discoverable, if relevant and not privileged. (Ellis v. Toshiba Am. Info. Sys., Inc. (2013) 218 Cal.App.4th 853, 859 fns. 5-6.)

A treatise opines the following:

A court must limit the frequency or extent of discovery of ESI, even from reasonably accessible sources, if any of the following conditions exist (Code Civ. Proc., §§ 1985.8(i), 2020.220(i)):

(1)

It is possible to obtain the ESI from another source that is more convenient,

less burdensome or less expensive;

(2)

The discovery sought is unreasonably cumulative or duplicative;

(3)

The party seeking discovery has had ample opportunity by discovery in the action to obtain the information sought; or

(4)

The likely burden or expense of the proposed discovery outweighs the likely benefit, taking into account the amount in controversy, the resources of the parties, the importance of the issues in the litigation, and the importance of the requested discovery in resolving the issues.

Absent

exceptional circumstances, the court may not impose sanctions on a subpoenaed person or their attorney for failure to provide ESI that has been lost, damaged, altered or overwritten as a result of the "routine, good faith operation of an electronic information system." (Code Civ. Proc., §§ 1985.8(m)(1), 1987.2(b)(1), 2020.220(m)(1), 2023.030(f)(1), 2025.410(e)(1) & 2025.450(i)(1).) However, this provision does not alter any obligation to preserve discoverable information. (Code Civ. Proc., §§ 1985.8(m)(2), 1987.2(b)(2), 2020.220(m)(2), 2023.030(f)(2), 2025.410(e)(2) & 2025.450(i)(2).)

Note,

because of the increased risk of inadvertently producing privileged information when large amounts of ESI are produced, a special "clawback" procedure is provided to resolve claims that documents produced in response to a subpoena for ESI are privileged or work product and should be returned. (Code Civ. Proc., §§ 1985.8(j) and 2020.220(j) (incorporating the "clawback" procedure provided in Code Civ. Proc., § 2031.285); for further discussion see this book at § 3:4.)

B.

Mobile phones and social media communications

When

appropriate, courts may order forensic examination of a party's mobile phone

for discoverable information. (See *Barton & Associates, Inc. v. Liska*, 2020 WL 8299750, *1 (S.D. Fla. 2020) (finding that, because a defendant had failed to produce copies of any text messages during the non-compete period and had failed to preserve his phone, a forensic examination was warranted); *Measured Wealth Private Client Group, LLC v. Foster*, 2021 WL 1215218, (S.D. Fla. 2021) (to protect defendant's privacy interests, independent examination of mobile phone subject to certain protocols).)

(Electronic Evidence in
California § 3:6 (2025-2026 ed.).)

And one discretionary remedy for spoliation of evidence is an evidentiary inference that the party destroyed, or rendered unavailable, evidence, because it was unfavorable to that party. (*Victor Valley Union High School Dist. v. Superior Court* (2023) 91 Cal.App.5th 1121, 1139.) But a court abused its discretion, in ordering evidentiary sanctions and a jury instruction regarding a party's spoliation, where it found only that the party destroyed evidence after receiving a notice to produce it, and there was no order overruling the objections and compelling discovery, such that there was no obligation to produce the requested documents. (See *New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1434.)

Here, the Court resolves the extensive evidentiary conflicts to find in favor of denying the motion, due to technical limitations involved and sufficient searching and inquiring for the information. Additionally, the Court sustains the overbreadth objection as to the extensive computer device storage Defendants seek, as to which a forensic examination would constitute an egregious intrusion into irrelevant, private content, such as everything on a person's cell phone or laptop.

C.
Plaintiff's Motion to Compel Further
Responses to Request for Production of Documents (Set Two).

Plaintiff seeks verifications as to Request for Production of Documents (Set Two), and code-compliant responses to numbers 29, 30, 55, 56, 57, 58, 59, 66, 67, 75, and 91. Plaintiff argues that the responses do not include whether production would be allowed in full or part, and they state meritless "duplicative" objections.

Defendants make the following points:

.

The meeting and conferring was inadequate and instead Plaintiff obtained ex parte relief advancing the hearing date.

.

Defendants properly sought discovery extensions before providing substantive responses on June 11, 2026.

.

Defendant cured the alleged deficiencies outlined in the Motion by serving further supplemental responses and verifications, on June 23, 2026.

On June 30, 2026, plaintiff argued that responses for requests 59 and 67 are still incomplete. And the parties planned to meet and confer and to file supplements if desired. According to Plaintiff's Supplemental Memorandum of Points and Authorities In Support of Plaintiff's Motion to Compel Further Discovery Responses on Plaintiff's Request for Production of Documents (Set Two) to Defendant Esoterix, Inc., and the accompanying Declaration of Levon Derkalousian, the parties met and conferred and agreed to narrow the requests as set forth in the parties' meet and confer emails attached to Mr. Derkalousian's email.

Pending the parties' informal resolution of this issue, the Court declines to issue the order requested by Mr. Derkalousian. The Court takes this matter off calendar without prejudice for further action if appropriate. Also, since the parties' met and conferred, and since the supplemental documents were filed, trial on the matter has been trailed past the July 14th date, giving the parties more time to resolve this issue.

IV.

CONCLUSION

The Court orders as set forth above, as to the three motions pending consideration this date.

Defendant to give notice.